ADMINISTRATIVE REVIEW TRIBUNAL

BRISBANE REGISTRY

Tribunal Numbers:	**2023/3361, 2023/3363 and 2023/4494**
First Applicant:	**VIDA REID**
Second Applicant:	**SIMON REID**
Third Applicant:	**FORWARD FOCUSED GROUP PTY LTD**
Respondent:	**COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION**

FIRST APPLICANT'S RESPONSE AND PROPOSED DIRECTIONS

in response to the Respondent's Proposed Minute of Order dated 14 August 2026

A. Position

1. This response states the position of the First Applicant, Ms Vida Reid, in matter 2023/3361. It does not adopt any factual assertion, concession or applicant-specific relief of another applicant. The First Applicant does not seek to reopen the severance applications determined on 31 July 2026. This response does not seek a stay under section 32 of the ART Act, and nothing in it waives her right to apply for one. Nothing in this response, and no omission from it, is an admission or concession of any fact, allegation or contention advanced by the Respondent, whose case is contested in its entirety; and nothing in it waives any privilege of the First Applicant, including the privilege against self-incrimination and penalty privilege.

2. The First Applicant adopts the procedural directions proposed by the Second Applicant at his directions 1, 2, 10, 11 and 12 to 16, which apply to all applicants, with the contingent timing in his direction 12 applying equally to her Statement of Facts, Issues and Contentions, and seeks the further directions below in her own matter.

B. Interpreter

3. The First Applicant has requested an interpreter in Farsi (Persian). The request is recorded at paragraphs 2(e) and 41 of the reasons of 31 July 2026. Under section 68 of the ART Act the Tribunal must comply with the request unless it considers that she does not need an interpreter.

C. Criminal proceedings and privilege

4. On 23 February 2024 the charges in Magistrates Court of Western Australia proceedings PE 45655–45658 of 2022 were dismissed for want of prosecution and the First Applicant was discharged; the certified transcript records the prosecution stating an intention to recharge. No charge is presently on foot against her. The First Applicant does not assert as fact that any investigation is current; she asks only that the Respondent identify any investigation or prosecution proposition on which it actually relies, as sought in the Second Applicant's direction 7 and in direction 5 below.

D. Preliminary statutory issues in her matter

5. The operative banning order enclosed with the notice of 20 December 2022 prohibited the First Applicant from "providing supports and services, directly or indirectly, to NDIS-funded participants" for five years, subject to an exception for supports or services she may seek for herself or provide to her son; the covering notice described the prohibition in different terms, and the certified instruments sought below will place the operative wording beyond doubt. On internal review on 21 April 2023 the stated statutory basis was changed from section 73ZN(2)(a)(i) to section 73ZN(2)(a)(iii) of the NDIS Act, and the operative prohibition was broadened to "any involvement with or in the NDIS sector, in any capacity", with inclusive examples.

6. The application of *Sunflower Care Services Pty Ltd v Commissioner of the NDIS Quality and Safeguards Commission (No 2)* [2025] FCA 1442 at [127]–[141] to each of her instruments raises the same preliminary questions as in the Second Applicant's matter. Two further questions arise in her matter. First, because a reviewer who varies a banning order must re-exercise the power under section 73ZN(2) (Sunflower at [75]–[76]), whether the order as varied on 21 April 2023 itself satisfies the requirements of section 73ZN(2), including as to specified activities and certainty. Secondly, whether the First Applicant was given notice of, and a fair opportunity to respond to, the changed statutory basis and the materially broadened terms before the varied order was made. She asks that these questions be determined with the preliminary issues in the Second Applicant's direction 9.

E. Further directions sought

V1. **Instruments.** Within 7 days, the Respondent serve certified or sealed complete copies of the original written notice and banning order of 20 December 2022, the internal review decision and reasons of 21 April 2023, the order as varied, the instrument of delegation relied upon for each decision, and evidence of the date on which each instrument was served and took effect.

V2. **Disposition, Sunflower position and allegation schedule.** By the same dates as in the Second Applicant's directions 4, 5, 7 and 8, the Respondent provide in respect of the First Applicant and matter 2023/3361: the statement of its proposed disposition and statutory position; its position on Sunflower; its statement of any investigation reliance; its witness notice; and a schedule stating, for every allegation relied upon against the First Applicant, the matters in categories (a) to (g) of the Second Applicant's direction 6, as they concern her.

V3. **Interpreter.** Pursuant to section 68 of the ART Act, the Tribunal arrange an independent interpreter in Farsi (Persian) for the First Applicant for the directions hearing and each subsequent case event at which she appears, with the parties notified of the arrangements not less than 3 business days before each event, and the suitability of those arrangements confirmed before the matters are set down for hearing.

V4. **Privilege protocol.** Until further order: (a) before evidence or production is sought from the First Applicant personally, the Respondent give reasonable written notice of the topics on which evidence is sought and any category of document it proposes to ask the Tribunal to require her to produce; (b) the First Applicant may notify a claim of privilege against self-incrimination, or penalty privilege, in respect of a specified question, topic or category,

identifying — without revealing the substance of any answer — the exposure said to arise; (c) the Tribunal determine any such claim before she is required to answer or produce, with any hearing of the claim conducted in private and with such non-disclosure orders as are appropriate; (d) the making of a claim not be treated as an admission; and (e) nothing in this protocol excuses the First Applicant from legal submissions, identification of disputed issues, non-incriminating evidence, or challenges to the Respondent's material.

V5. **Preliminary issues.** The questions identified at paragraphs 5 and 6 above be determined with the preliminary issues in the Second Applicant's direction 9, on the documents and without witness evidence, oral legal submissions being permitted.

V6. **Liberty to apply** on reasonable notice, including upon any material change in the status of any investigation or prosecution concerning the First Applicant.

Dated: _____ 2026

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Vida Reid

First Applicant, in person